

Currituck Superior Court

Case Summary

Case No. 15CR000343-260

STATE OF NORTH CAROLINA VS KIMBERLY LYNN
UMPHLETT

§ Location: Currituck Superior Court
§ Filed on: 06/30/2015
§ Microfilm Number: 16 0004 9999
§ Criminal Process Number: 15IND757233
§ Criminal Process Number: 15RO759950
§ Criminal Process Number: 15OFA757255
§ Electronic Warrants Warrant ID: 1ead60883117f958e1f353f9cfede
§ Electronic Warrants Warrant ID: c2c3946e92781bdc73d573bdeece
§ ACIS File Number Key: 2602015000343S

Case Information

Offense	Statute	Degree	Offense Date	Filed Date	Case Type: Criminal
51. SEX OFFENSE STUDENT (F)	14-27.7(B)	FG	04/01/2015	06/30/2015	Case Status: 04/11/2016 Disposed
Arrest					
Date: 06/30/2015					
Agency: CURRISO - Currituck County Sheriffs Office					
Offense Reports					
Agency: Currituck County Sheriffs Office					
407 Maple Road					
Maple, NC, 27956					
52. CRIME AGAINST NATURE	14-177	FI	04/01/2015	06/30/2015	
Arrest					
Date: 06/30/2015					
Agency: CURRISO - Currituck County Sheriffs Office					
Offense Reports					
Agency: Currituck County Sheriffs Office					
407 Maple Road					
Maple, NC, 27956					

Related Cases

Assignment Information

Current Case Assignment

Case Number 15CR000343-260
Court Currituck Superior Court
Date Assigned 07/01/2015

Party Information

Defendant	UMPHLETT, KIMBERLY LYNN 808 SUFFOLK ST KILL DEVIL HILL, NC 27948 White Female	Felthousen, Kris J. <i>Retained</i>
State	STATE OF NORTH CAROLINA State of North Carolina Other	DAVIS, EMILY ROSEMAN <i>Retained</i>
Complainant	MIDGETT, J CCSO	

Currituck Superior Court

Case Summary

Case No. 15CR000343-260

Case Events

03/19/2018 Monies Corrected

PAID STATUS: YES

Charges:

52. CRIME AGAINST NATURE (3620)

Created: 03/19/2018 8:25 AM

04/14/2016

Offense Disposition Correction

Court Officials Present: Title Name JUDGE JERRY R TILLET STATE ATTORNEY EMILY DAVIS PRIVATELY RETAINED KRIS J FELTHOUSEN DISPOSITION DATE: 04/11/2016 METHOD OF DISPOSITION CODE: JUDGE VERDICT RULING CODE: GUILTY PLEA TYPE: NO CONTEST OFFENSE TYPE: FELONY GENERAL STATUTE: 14-177 OFFENSE CODE: 3620 OFFENSE CLASS: I CONVICTED OFFENSE TEXT: CRIME AGAINST NATURE PRIOR RECORD POINTS: 0 OTHER SPECIAL CONDITIONS: NOT CONTACT OR BE IN THE PRESENCE OF THE VICTIM DURING PERIOD OF PROBATION. INSTALLMENT PLAN AND SET UP FEE: Y SENTENCE TYPE: COMMUNITY SENTENCE RANGE: PRESUMPTIVE SENTENCE MINIMUM TERM: 5.0 MONTHS SENTENCE MAXIMUM TERM: 15.0 MONTHS IN CUSTODY OF: NC DAC PROVIDE DNA: Y NO PRETRIAL JAIL CREDIT FOR THIS SENTENCE: Y DRIVING SUSPENDED PRIVILEGES INDICATOR: N NOT OPERATE MOTOR VEHICLE UNTIL PROPERLY LICENSED: N PROBATION TERM: 24.0 MONTHS PROBATION TYPE: SUPERVISED

Charges:

52. CRIME AGAINST NATURE (3620)

Created: 04/14/2016 4:50 PM

04/14/2016 CCISCC Special Conditions

NOT CONTACT OR BE IN THE PRESENCE OF THE VICTIM DURING PERIOD OF PROBATION.

Charges:

52. CRIME AGAINST NATURE (3620)

Created: 04/14/2016 12:00 AM

04/11/2016

Monies Entered

Court Officials Present: Title Name JUDGE JERRY R TILLET PAID STATUS: NO PAYMENT TYPE: FULL PAYMENT TO BE PAID DATE: 04/11/2018 Type: FINE AMT: \$250.00 Status: ORDERED Restitution To: Type: GCJF SUPERIOR AMT: \$152.05 Status: ORDERED Restitution To: Type: GCJF SUPERIOR-LAA AMT: \$2.45 Status: ORDERED Restitution To: Type: LEOB-RF AMT: \$7.50 Status: ORDERED Restitution To: Type: LE CERT & TRAINING - SUPERIOR AMT: \$2.00 Status: ORDERED Restitution To: Type: TELECOM & DATA FEE SUPERIOR AMT: \$4.00 Status: ORDERED Restitution To: Type: SERVICE FEE AMT: \$5.00 Status: ORDERED Restitution To: Type: FACILITIES FEE SUPERIOR AMT: \$30.00 Status: ORDERED Restitution To: Type: STATE DNA FEE SUPERIOR AMT: \$2.00 Status: ORDERED Restitution To: Type: PROBATION SUPERVISION FEE AMT: \$0.00 Status: ORDERED Restitution To: Type: INSTALLMENT PLAN AND SET UP FEE AMT: \$20.00 Status: ORDERED Restitution To: Ordered By: TILLET,JERRY,R Ordered Date: 03/19/2018 Payment Type: FL PYMT

Charges:

52. CRIME AGAINST NATURE (3620)

Created: 04/14/2016 4:47 PM

04/11/2016

Offense Disposed

Court Officials Present: Title Name JUDGE JERRY R TILLET STATE ATTORNEY EMILY DAVIS PRIVATELY RETAINED KRIS J FELTHOUSEN DISPOSITION DATE: 04/11/2016 METHOD OF DISPOSITION CODE: JUDGE VERDICT RULING CODE: GUILTY PLEA TYPE: GUILTY OFFENSE TYPE: FELONY GENERAL STATUTE: 14-177 OFFENSE CODE: 3620 OFFENSE CLASS: I CONVICTED OFFENSE TEXT: CRIME AGAINST NATURE PRIOR RECORD POINTS: 0 OTHER SPECIAL CONDITIONS: NOT CONTACT OR BE IN THE PRESENCE OF THE VICTIM DURING PERIOD OF PROBATION. INSTALLMENT PLAN AND SET UP FEE: Y SENTENCE TYPE: COMMUNITY SENTENCE RANGE: PRESUMPTIVE SENTENCE MINIMUM TERM: 5.0 MONTHS SENTENCE MAXIMUM TERM: 15.0 MONTHS IN CUSTODY OF: NC DAC PROVIDE DNA: Y NO PRETRIAL JAIL CREDIT FOR THIS SENTENCE: Y DRIVING SUSPENDED PRIVILEGES INDICATOR: N PROBATION TERM: 24.0 MONTHS PROBATION TYPE: SUPERVISED

Charges:

52. CRIME AGAINST NATURE (3620)

Created: 04/14/2016 4:47 PM

04/11/2016

Offense Disposed

Court Officials Present: Title Name STATE ATTORNEY EMILY DAVIS PRIVATELY RETAINED KRIS J FELTHOUSEN DISPOSITION DATE: 04/11/2016 METHOD OF DISPOSITION CODE: DISMISSAL WITHOUT LEAVE BY DA

Charges:

51. SEX OFFENSE STUDENT (F) (1141)

Created: 04/14/2016 4:44 PM

04/11/2016 State Attorney Assigned

Court Officials Present: Title Name STATE ATTORNEY EMILY DAVIS

Currituck Superior Court

Case Summary

Case No. 15CR000343-260

Created: 04/14/2016 4:44 PM

08/26/2015 Defense Attorney Assigned

Court Officials Present: Title Name PRIVATELY RETAINED KRIS J FELTHOUSEN NOTIFIED BY EMAIL: N

Created: 08/26/2015 5:37 PM

06/30/2015

Order for Arrest Returned Served

Process Status: 'SERVED' Source: 'CRCT_PRO' FNGRPRNT_RQRD_CD: 'N' DMSTC_VLNC_CD: 'N' VCTMS_RGHTS_CD: 'N'
DNA_RQRD_IND: 'N' MNL_IND: 'N' INCL_IMG_IND: 'Y' Source: 'CRCT_OBO' CD: 'CLRK OF CRT' NM: 'RAYMOND F. MATUSKO JR.'
Source: 'CRCT_OFA' RSN_CD: 'TRUE BOI' OTHR_RSN: " DRCTN_CD: 'RLS' BND_AMT: " BND_TP: " BND_NOTE: " Related Cases:
'15CRS000343-260-M' Event Date: 06/30/2015 Comment: Time of Service: 7:18 PM Arrest #: Serving Officer Agency: Currituck County
Sheriff's Office Serving Officer Badge #: 203 Serving Officer: LAMBERTSON, WAYNE R
Crim Proc #: 15OFA757255

Charges:

51. SEX OFFENSE STUDENT (F) (1141)

52. CRIME AGAINST NATURE (3620)

Created: 06/30/2015 12:00 AM

06/30/2015

Order for Arrest Assigned/Reassigned

Process Status: 'SERVED' Source: 'CRCT_PRO' FNGRPRNT_RQRD_CD: 'N' DMSTC_VLNC_CD: 'N' VCTMS_RGHTS_CD: 'N'
DNA_RQRD_IND: 'N' MNL_IND: 'N' INCL_IMG_IND: 'Y' Source: 'CRCT_OBO' CD: 'CLRK OF CRT' NM: 'RAYMOND F. MATUSKO JR.'
Source: 'CRCT_OFA' RSN_CD: 'TRUE BOI' OTHR_RSN: " DRCTN_CD: 'RLS' BND_AMT: " BND_TP: " BND_NOTE: " Related Cases:
'15CRS000343-260-M'
Instrument #: 15OFA757255

Charges:

51. SEX OFFENSE STUDENT (F) (1141)

52. CRIME AGAINST NATURE (3620)

Created: 06/30/2015 12:00 AM

06/30/2015

Order for Arrest Assigned/Reassigned

Process Status: 'SERVED' Source: 'CRCT_PRO' FNGRPRNT_RQRD_CD: 'N' DMSTC_VLNC_CD: 'N' VCTMS_RGHTS_CD: 'N'
DNA_RQRD_IND: 'N' MNL_IND: 'N' INCL_IMG_IND: 'Y' Source: 'CRCT_OBO' CD: 'CLRK OF CRT' NM: 'RAYMOND F. MATUSKO JR.'
Source: 'CRCT_OFA' RSN_CD: 'TRUE BOI' OTHR_RSN: " DRCTN_CD: 'RLS' BND_AMT: " BND_TP: " BND_NOTE: " Related Cases:
'15CRS000343-260-M'
: 15OFA757255

Charges:

51. SEX OFFENSE STUDENT (F) (1141)

52. CRIME AGAINST NATURE (3620)

Created: 06/30/2015 12:00 AM

06/30/2015

Order for Arrest Assigned/Reassigned

Process Status: 'SERVED' Source: 'CRCT_PRO' FNGRPRNT_RQRD_CD: 'N' DMSTC_VLNC_CD: 'N' VCTMS_RGHTS_CD: 'N'
DNA_RQRD_IND: 'N' MNL_IND: 'N' INCL_IMG_IND: 'Y' Source: 'CRCT_OBO' CD: 'CLRK OF CRT' NM: 'RAYMOND F. MATUSKO JR.'
Source: 'CRCT_OFA' RSN_CD: 'TRUE BOI' OTHR_RSN: " DRCTN_CD: 'RLS' BND_AMT: " BND_TP: " BND_NOTE: " Related Cases:
'15CRS000343-260-M'
: 15OFA757255

Charges:

51. SEX OFFENSE STUDENT (F) (1141)

52. CRIME AGAINST NATURE (3620)

Created: 06/30/2015 12:00 AM

06/30/2015

Release Order Issued

Process Status: 'ISSUED' Source: 'CRCT_PRO' FNGRPRNT_RQRD_CD: 'Y' DMSTC_VLNC_CD: 'N' VCTMS_RGHTS_CD: 'N'
DNA_RQRD_IND: 'Y' MNL_IND: 'N' INCL_IMG_IND: 'Y' Source: 'CRCT_OBO' CD: 'SLF' NM: 'W G PRIVOTT' Related Cases:
'15CRS000343-260-M' Related Processes: '15OFA757255'
Crim Proc #: 15RO759950
Created: 06/30/2015 12:00 AM

06/30/2015 Legacy Process Served Date

Created: 06/30/2015 12:00 AM

06/29/2015

Order for Arrest Issued

Process Status: 'SERVED' Source: 'CRCT_PRO' FNGRPRNT_RQRD_CD: 'N' DMSTC_VLNC_CD: 'N' VCTMS_RGHTS_CD: 'N'

Currituck Superior Court

Case Summary

Case No. 15CR000343-260

DNA_RQRD_IND: 'N' MNL_IND: 'N' INCL_IMG_IND: 'Y' Source: 'CRCT_OBO' CD: 'CLRK OF CRT' NM: 'RAYMOND F. MATUSKO JR.'
Source: 'CRCT_OFA' RSN_CD: 'TRUE BOI' OTHR_RSN: " DRCTN_CD: 'RLS' BND_AMT: " BND_TP: " BND_NOTE: " Related Cases:
'15CRS000343-260-M' OFA Reason: "TRUE BOI" Related cases and offenses: 15CRS000343-260 (lead) 1141 - F - SEX OFFENSE STUDENT
(F)

Crim Proc #: 15OFA757255

Created: 06/29/2015 12:00 AM

06/29/2015 Indictment Issued

CRRPRS:I

Created: 06/29/2015 12:00 AM

06/29/2015 Indictment Issued

Created: 06/29/2015 12:00 AM

Dispositions

04/11/2016 **Plea**

UMPHLETT, KIMBERLY LYNN

52. CRIME AGAINST NATURE

No Contest

Created: 04/11/2016 12:00 AM

04/11/2016 **Disposition**

51. SEX OFFENSE STUDENT (F)

VD-Superior Dismissals w/o Leave by DA - No Plea Agreement

Created: 04/11/2016 12:00 AM

04/11/2016 **Disposition** (Judicial Officer: TILLET, JERRY R)

52. CRIME AGAINST NATURE

Superior Guilty - Judge

Created: 04/11/2016 12:00 AM

04/11/2016 **Community**

52. CRIME AGAINST NATURE

04/01/2015 (FI) 14-177 (3620)

: VC3564T

Probation

Adult

Supervised

Duration: 24 Months

Confinement

Minimum: 0 Years, 5 Months, 0 Days

Maximum: 0 Years, 15 Months, 0 Days

Prior Record Points: 0

Conclusions of Law and Judicial Findings

Findings Not Entered in Legacy System

Adult

Felony Conviction Range: Presumptive

Agency Responsible for Confinement: DAC

Jail Credit Calculator

No Credit for Time Served

Jail Fees

Additional Orders

Provide DNA

Created: 04/11/2016 12:00 AM

Hearings

04/11/2016 **Disposition Hearing** (9:00 AM) (Judicial Officer: TILLET, JERRY R)

Hearing Held

Created: 04/11/2016 12:00 AM

Currituck Superior Court

Case Summary

Case No. 15CR000343-260

Bond Settings

07/01/2015 **Bond Setting**

Set by Judge \$5,000.00 Secured Bond - Professional Surety

Conditions:

- Defendant required to provide DNA sample- GS 15A-266.3A - The defendant is required to provide a DNA sample under G.S. 15A-266.3A.
- Defendant required to provided fingerprints- GS 15A-502 - The defendant is required to provide fingerprints under G.S. 15A-502.
- DNA required PRIOR to release - Prior to release, the defendant shall provide his/her DNA.
- Fingerprints required PRIOR to release - Prior to release, the defendant shall provide his/her fingerprints.
- Arrestable Restrictions- Default
- Detention Facility - Detention Facility-

Financial Information

Defendant UMPHLETT, KIMBERLY LYNN

Total Financial Assessment

475.00

Total Payments and Credits

475.00

Balance Due as of 03/23/2026

0.00

04/11/2016 Transaction Assessment

475.00

03/20/2018 Courthouse Payment

Receipt # CR00044179-260

(475.00)